

RIGHTS AND LIABILITIES OF THE GOVERNMENT

PROPERTY -> CAPACITY -> VALID CONTRACT -> SUABILITY -> TORT -> PROPERTY PROTECTION

Read the cyan rail from constitutional continuity to the remedy decision tree. Every stage preserves the distinction between public power, special procedure and effective accountability.

00

CONSTITUTIONAL MAP: CAPACITY WITH ACCOUNTABILITY

ARTICLES 294-300ARTICLE 300A ADJACENTNO BLANKET IMMUNITY

- 294-297: property allocation
- 298: executive capacity
- 299: mandatory contract form

- 300: named suable government
- 300A: deprivation only by law
- Remedy depends on the wrong

SUCCESSION AT COMMENCEMENT: ARTICLES 294-295

DOMINION / PROVINCESFORMER INDIAN STATESLATER REORGANISATION BY STATUTE

Article 294  
Dominion assets/rights/liabilities -> Union  
Governor's Province -> corresponding State

Article 295  
Union if Union-purpose/List nexus  
otherwise corresponding State

Later change  
reorganisation statute/agreement allocates  
assets, debt, staff and proceedings

ANSWER LINE: Succession prevents a constitutional transition from creating an ownership or liability vacuum.

02

OWNERLESS AND MARITIME PROPERTY: ARTICLES 296-297

ESCHEATLAPSEBONA VACANTIAUNION MARITIME VESTING

ESCHEAT  
Property returns for want of lawful heir.

LAPSE  
Recognised title/right fails or terminates.

BONA VACANTIA  
Ownerless property, location rule with purpose-based proviso.

ARTICLE 297  
Specified ocean-bed lands, minerals, things of value and EEZ resources vest in Union.

ANSWER LINE: Article 296 is not acquisition, and Article 297 does not itself state every maritime-zone distance.

03

ARTICLE 298: COMMERCIAL CAPACITY UNDER LEGISLATIVE CONTROL

TRADE / BUSINESSACQUIRE-HOLD-DISPOSECONTRACTSFEDERAL PROVISOS

Union and State executive capacity

Appropriate legislature may regulate

Article 14 + statute + appropriation + audit

Article 299 still controls valid commitment

ANSWER LINE: Capacity is broad; legal authority, equality and financial accountability remain.

04

ARTICLE 299: FROM CAPACITY TO VALID COMMITMENT

EXPRESSED IN HEAD'S NAMEEXECUTED ON BEHALFAUTHORISED PERSON / MANNER

Article 298 capacity

All three Article 299(1) formalities

Valid governmental contract

Article 299(2); no personal liability of head/executant

ANSWER LINE: Bhikraj Japuna and Mulamchand treat form as mandatory public policy, not curable etiquette.

05

DEFECTIVE CONTRACT AND SECTION 70 RESTITUTION

NO RATIFICATION / ESTOPPEL CURELAWFUL BENEFITNON-GRATUITOUSENJOYED BY STATE

Article 299 defect -> contract claim fails

Test section 70 independently

B.K. Mondal: benefit-retention illustration

Mulamchand: prove benefit and account for reciprocal gain

ANSWER LINE: Restitution reverses unjust enrichment; it neither validates the bargain nor guarantees its price.

06

ARTICLE 300 AND THE CIVIL-SUIT PROCEDURAL RAIL

CPC 79CPC 80(1)CPC 80(2)LIMITATION 15(2)CPC 82

PARTY  
Union of India / name of State.

NOTICE  
Two months before a covered suit.

URGENCY  
Court leave + reasonable show-cause opportunity.

LIMIT / EXECUTION  
Exclude required notice time; wait three months before qualifying execution.

ANSWER LINE: Notice and delayed execution structure litigation; they do not create substantive immunity.

07

PRIVATE TORT: SOVEREIGN IMMUNITY NARROWED

P & OVIDYAWATIKASTURI LALN. NAGENDRA RAO

Colonial divide  
sovereign / non-sovereign

Vidyawati (1962)  
ordinary vehicle negligence  
State vicariously liable

Kasturi Lal  
older police-custody immunity  
strongly criticised

N. Nagendra Rao (1994)  
broad immunity untenable  
narrow inalienable residue

ANSWER LINE: Ask function, duty, breach, causation, damage and employment nexus - never begin with blanket immunity.

08

CONSTITUTIONAL COMPENSATION AND PERSONAL RESPONSIBILITY

RUDUL SAHNILABATI BEHERAD.K. BASUPARALLEL REMEDIES

Established Fundamental-Right violation

Articles 32/226 public-law relief

Compensation + preventive directions

Civil / criminal / disciplinary / personal routes may coexist

ANSWER LINE: Writ compensation vindicates rights; it does not universally replace ordinary remedies.

09

ARTICLE 300A: FROM FUNDAMENTAL RIGHT TO LEGALITY GUARANTEE

44TH AMENDMENTEVERY PERSONOUTSIDE PART IIIAUTHORITY OF LAW

Before amendment  
Articles 19(1)(f) + 31

44th Amendment  
removed former Part III property rights  
inserted Article 300A

Bishambhar Dayal  
executive direction alone insufficient

Jilubhai  
constitutional, non-Fundamental right  
old adequacy rule not restored

ANSWER LINE: The Forty-fourth Amendment reduced remedial status, not the rule against executive confiscation.

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PROPERTY TAXONOMY, PURPOSE AND COMPENSATION

ACQUISITIONREQUISITIONREGULATIONUNAUTHORISED OCCUPATION

ACQUISITION  
Ordinarily permanent transfer/extinguishment; law and public purpose.

REQUISITION  
Ordinarily temporary possession/use under statute.

REGULATION  
Controls use; not automatically deprivation.

CASES  
K.T. Plantation: no confiscation/illusory compensation. Vidya Devi: no occupation shortcut.

ANSWER LINE: Article 300A does not guarantee market value in every case, but rejects lawless or colourable taking.

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UPSC REMEDY DECISION TREE AND FINAL FIREWALL

CONTRACTRESTITUTIONPRIVATE TORTPUBLIC LAWPERSONAL LIABILITY

VALID CONTRACT  
Article 299 + breach -> contract/arbitration.

DEFECTIVE FORM  
Section 70 only if independent ingredients proved.

CIVIL / RIGHTS WRONG  
Private tort or constitutional compensation; do not collapse.

PROPERTY / OFFICIAL  
Article 300A review; personal criminal/disciplinary/civil route if proved.

ANSWER LINE: Identify wrong -> source -> defendant -> proof -> forum -> relief -> overlap and double-recovery limit.

E

OPTIONAL ENRICHMENT: REORGANISATION, PROCUREMENT, ARBITRATION AND REFORM

REORGANISATION

- Statute/instrument allocates assets
- Debt, staff, records and proceedings
- No universal constitutional formula

PROCUREMENT / ARBITRATION

- Fair criteria and reasoned award
- Article 299-compliant execution
- Arbitration cannot cure absent authority

STATE-TORT REFORM

- Narrow core-function exceptions
- Operational liability and evidence duties
- Official contribution and no double recovery